

route passes over and parallel to the parking lot and/or roadway. (See Def.'s Sep. St. Nos. 1, 6, 18, 20 [and evidence cited therein].)

Trail immunity may apply to mixed use trails. (See, e.g., *Armenio v. County of San Mateo* (1994) 28 Cal.App.4th 413, 415 [trail immunity covered a "scenic linear park" that consisted of "a 6.2 mile surfaced trail with rest areas for bicyclists, hikers, joggers, and equestrians"]; *Nealy v. Orange County* [hiking and bicycling trail].) In *Burgueno v. The Regents of the University of California*, the plaintiff was fatally injured while commuting by bicycle on a paved bike path used for both recreational and non-recreational bicycling. (*Burgueno, supra*, 243 Cal.App.4th at pp. 1055, 1061.) Pedestrians and public vehicular traffic, however, were generally not permitted on the bikeway. (*Id.* at p. 1055.) The *Burgueno* court noted the purpose of the immunity is to encourage public entities to open their property for public recreational use and affirmed the trial court's granting of summary judgment, concluding the dual recreational and non-recreational use does not preclude trail immunity under section 831.4. (See *id.*, at pp. 1059-1060.)

Trail immunity may also extend to a bikeway that includes limited vehicle traffic. (See, e.g., *Hartt v. County of Los Angeles* (2011) 197 Cal.App.4th 1391, 1402 [access trail used by bicyclists and maintenance vehicles to access various parts of the park]; *Burgueno v. The Regents of the Univ. of Cal.* (2015) 243 Cal.App.4th 1052, 1055 [trail was occasionally accessed by university service vehicles and emergency vehicles].) In *Hartt v. County of Los Angeles*, a bicyclist was killed while using an access road in a county park, which was used both for recreational purposes and for maintenance vehicle access to various and sundry locations within the park. (*Hartt, supra*, 197 Cal.App.4th at p. 1400.) The court held that the dual or mixed use of the trail did not circumvent trail immunity. (*Ibid.*)

Here, it is undisputed that the bikeway has multiple current uses, including parking lot, vehicle traffic, recreational pedestrian traffic, and recreational bicycle traffic—although all uses are recreational. (See Def.'s Sep. St. Nos. 4-6 [and evidence cited therein]; Pltfs.' Sep. St. Nos. 4-6 [disputing other grounds].) It is further undisputed that Plaintiff was using the bikeway recreationally at the time of the accident. (Pltfs.' Sep. St. No. 22 [and evidence cited therein].) On the other hand, unlike any cases cited by Defendant, it is undisputed that one of the uses of the location is public automobile traffic and parking. (See Def.'s Sep. St. No. 5 [and evidence cited therein]; see Pltf.'s Sep. St. No. 5 [disputing on other grounds].) Plaintiff submits evidence that the parking lot is

		divided by double yellow lines for two-lane vehicular travel and is open to the public for use by RV's, trailers, campers, busses, trolleys, and commercial trucks. (See Pltf.'s Sep St. No. 5 [and evidence cited therein]; Pltfs.' Add. Sep. St. No. 4 [and evidence cited therein].) In other words, the incident here took place in a location that is simultaneously a recreational bikeway, parking lot, and roadway. None of the authorities cited by Defendant extends trail immunity to bikeways that include paved parking lots and/or roads, and the court has found no such authority. Furthermore, Defendant does not submit evidence sufficient to show the location was designed to be a bikeway, given the multiple other uses. Defendant's sole submitted photographic evidence of the area depicts a two-lane roadway or parking lot divided by double yellow lines and no apparent designated area for bicyclists. (Adams Decl., Ex. 7.) The photograph reflects no signage or permanent markings to designate a bike route. (See <i>id.</i>) <u>Purpose of Immunity Statute</u> The location includes "two-lane vehicular travel" and is referred to in at least one publication as "Beach Road." (Def.'s Sep. St. No. 12; see Pltf.'s Sep. St. No. 5 [citing in part Kibbey Depo. at 26:25-27:2].) Given the conflicting evidence as to whether the location is considered a public road or street, and the undisputed fact that motor vehicles regularly share the road here, the court cannot conclude as a matter of law that the purpose of the immunity statute would be promoted by its application here. Plaintiffs' evidentiary objection No. 2 is overruled. The remainder of the objections were not material to the disposition of this motion. (Code Civ. Proc., § 437c(q).) Plaintiffs to give notice.
10	Smurro v. JPMorgan Chase Bank, N.A.	TENTATIVE RULING: <u>Petition to Compel Arbitration</u> Defendant Fidelity Brokerage Services, LLC, erroneously sued as Fidelity Investments ("Fidelity"), petitions to compel arbitration of all the claims asserted by Plaintiff Thomas E. Smurro in his operative Complaint against Fidelity. For the following reasons, Fidelity's petition is GRANTED.